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EU SETTLEMENT SCHEME SETTLED STATUS



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EU SETTLEMENT SCHEME SETTLED STATUS

The EU Settlement Scheme is open to resident EU, EEA and Swiss citizens and their family members who started living in the UK by 31 December 2020 (the end of the 'Withdrawal Period') and are seeking to remain after the expiry of the 'Grace Period' on 30 June 2021.

Eligible persons who have completed a continuous 5 year period of qualifying residence in the UK will be granted indefinite leave to remain in the UK, also known as Settled Status. Most applicants now eligible to apply for Settled Status will already have been granted Pre-Settled Status. If you are not eligible for Settled Status under the EU Settlement Scheme solely because you have not completed a continuous qualifying period of residence of at least 5 years then you will be granted Pre-Settled Status

(<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-pre-settled-status/>).

The EU Settlement Scheme is also open to joining family members, who have an EU, EEA or Swiss relative who started living in the UK by 31 December 2020 where the relevant relationship was formed prior to this date and continues to exist at the date of application. They will usually first have to apply for an EU Settlement Scheme Family Permit (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-family-permit/>) to enter the UK. and must then apply for Pre-Settled Status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-pre-settled-status/>) to remain living in the UK. After a continuous period of 5 years with Pre-Settled Status, they might then be able to apply for Settled Status.

Deadline for Applying to the EU Settlement Scheme

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(<https://www.google.co.uk>

The deadline for making an application to the EU Settlement Scheme for EEA nationals and their family members who were resident in the UK prior to 31 December 2020 was 30 June 2021 (the end of the 'Grace Period'). Those who were not yet eligible for Settled Status by that date were able to apply for Pre-Settled Status, and subsequently would be eligible to apply for Settled Status after a continuous qualifying period of residence of 5 years.

If an application was not made for either Settled or Pre-Settled Status by this date, then you may still be able to apply if there are reasonable grounds for making a late application. See **Updated Guidance on Late EU Settlement Scheme Applications**

(<https://immigrationbarrister.co.uk/updated-guidance-on-late-eu-settlement-scheme-applications/>) and **Update on EU Settlement Scheme Deadlines and Late Applications** (<https://immigrationbarrister.co.uk/update-on-eu-settlement-scheme-deadlines-and-late-applications/>).

Swiss nationals will be able to bring a spouse or civil partner to the UK until 31 December 2025 if the relationship began between 31 December 2020 and 31 December 2025 and the relationship is continuing.

Family members of a British citizen who lived outside the UK in an EEA country with the British citizen needed to apply to the EU Settlement Scheme by 29 March 2022. However, there is scope for late applications to be made here too. See *New Guidance on Late Surinder Singh Applications* (<https://immigrationbarrister.co.uk/new-guidance-on-late-surinder-singh-applications/>).

If you have limited leave to enter or remain in the UK which expires after 30 June 2021 you must apply before this leave expires.

- **Updated Guidance on Late EU Settlement Scheme Applications**
(<https://immigrationbarrister.co.uk/updated-guidance-on-late-eu-settlement-scheme-applications/>)
- **Update on EU Settlement Scheme Deadlines and Late Applications**
(<https://immigrationbarrister.co.uk/update-on-eu-settlement-scheme-deadlines-and-late-applications/>)
- **New Guidance on Late Surinder Singh Applications**
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- **Avoiding Delays in EU Settlement Scheme Applications**
(<https://immigrationbarrister.co.uk/avoiding-delays-in-eu-settlement-scheme-applications/>)
- **The Status of EU Settlement Scheme Applicants After 30 June 2021**
(<https://immigrationbarrister.co.uk/the-status-of-eu-settlement-scheme-applicants-after-30-june-2021/>)

Requirements for Settled Status

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(n) order to qualify for Settled Status you will need to satisfy UK Visas & Immigration that

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- You are a relevant EEA citizen; or
- You are a family member of a relevant EEA citizen; or
- You are a family member who has retained the right of residence by virtue of a relationship with a relevant EEA citizen; or
- You are a person with a derivative right to reside (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-derivative-rights-of-residence/>); or
- You are a person with a Zambrano right to reside; and
- You started living in the UK by 31 December 2020 (or you are a joining family member who arrived after 31 December 2020 and subsequently completed a continuous qualifying period of residence of at least 5 years); and
- You have completed a continuous qualifying period of residence of at least 5 years.

The exact requirements you will need to satisfy will vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your EU Settlement Scheme Settled Status application with one of our immigration barristers, contact our EU Settlement Scheme lawyers on 0203 617 9173 or complete our enquiry form below.

What is Settled Status?

Settled Status is granted to applicants to the EU Settlement Scheme who are able to demonstrate 5 years' continuous residence in the UK, the Channel Islands or the Isle of Man. Unless you are a joining family member, you will need to have started living in the UK by 31 December 2020.

If you are granted Settled Status you will be able to stay in the UK indefinitely.

If you have Settled Status, you can spend up to 5 years in a row outside the UK (or 4 years if you are a Swiss citizen) without losing your Settled Status.

Demonstrating 5 Years' Continuous Residence

Generally, in order to demonstrate 5 years' continuous residence you will need to demonstrate that you have lived in the UK, the Channel Islands or the Isle of Man for at least 6 months in every 12 months during a consecutive 5 year period.

Under the Immigration Rules, the following absences will not be considered to break the continuous qualifying period;

- A single period of up to 12 months for an important reason such as childbirth, serious illness, study, vocational training or an overseas work posting; (<https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>)
- A period of compulsory military service of any length;
- Time spent abroad as a Crown servant, or as the family member of a Crown servant;
- Time spent abroad in the armed forces, or as the family member of someone in the armed forces.

The Home Office has published a number of additional concessions relating to absences which are as a result of COVID-19.

Since July 2025, additional exceptions mean that holders of pre-settled status can rely on a period of residence of at least 30 months in total in the 60 month period prior to the date of their application to qualify for Settled Status.

Who Should Apply to the EU Settlement Scheme?

You should apply to the EU Settlement Scheme if you are an EU, EEA or Swiss citizen. Consideration should be given to whether the deadlines set out above apply to your application.

You should also apply to the EU Settlement Scheme if you are not an EU, EEA or Swiss citizen but you are a family member of an EU, EEA or Swiss citizen. Again, consideration should be given as to whether the deadlines set out above apply to your application.

Relevant family members include the spouse, civil partner or unmarried partner of an EU, EEA or Swiss citizen, as well as the child, grandchild or great-grandchild under 21 years old, dependent child over the age of 21, dependent parent, grandparent or great-grandparent or dependent relative of either an EU, EEA or Swiss citizen or their spouse or civil partner. The evidence of family relationships varies for each type of family member. Generally, a relationship needs to have existed prior to 31 December 2020. Considerations should also be given as to whether this will first entail applying for an EU Settlement Scheme Family Permit (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-family-permit/>) where the relevant family member resides abroad.

Who Else Can Apply to the EU Settlement Scheme?

You may be eligible to apply to the EU Settlement Scheme if you are not an EU, EEA or Swiss citizen and:

- You are a family member of an EU, EEA or Swiss citizen who has retained the right of residence by virtue of a relationship with a relevant EEA citizen who has passed away or from whom you have separated or where the family relationship has broken down;
- You are a family member of a British citizen and you lived outside the UK in an EEA country together;
- You are a family member of a British citizen who also has EU, EEA or Swiss citizenship and who lived in the UK as an EU, EEA or Swiss citizen before getting British citizenship;

- You are the primary carer of a British, EU, EEA or Swiss citizen;
- You are the child of an EU, EEA or Swiss citizen who used to live and work in the UK or the child's primary carer.

See also EU Settlement Scheme Derivative Rights of Residence (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-derivative-rights-of-residence/>) for further information about entitlements to the Scheme for family members in the above circumstances.

Who Does Not Need to Apply to the EU Settlement Scheme?

You do not need to apply to the EU Settlement Scheme if you have been granted indefinite leave to enter or remain in the UK or you have Irish citizenship (including British and Irish 'dual citizenship').

You cannot apply if you have British citizenship or are exempt from immigration control.

You also do not need to apply to the EU Settlement Scheme if you work in the UK but do not live here (referred to as a 'Frontier Worker'). You should instead consider applying for a **Frontier Worker Permit** (<https://immigrationbarrister.co.uk/personal-immigration/other-work-visas/frontier-worker-permit/>). Non-EEA citizen family members of Frontier Workers should apply to the EU Settlement Scheme.

Settled Status Rights

If you are granted Settled Status you will have a full right to work, study, live, access the NHS and travel in and out of the UK. See also this post (<https://immigrationbarrister.co.uk/new-right-to-work-check-guidance-for-employers/>) about how to prove these entitlements once granted Settled Status.

Applying to the EU Settlement Scheme From Outside the UK

It is possible to apply for status under the EU Settlement Scheme from inside or outside the UK if you are able to provide the 'required evidence of entitlement' to do so.

Application Fee for an EU Settlement Scheme Settled Status Application

The Home Office does not charge an application fee for an EU Settlement Scheme Settled Status application.

Applicants for EU Settlement Scheme Settled Status are also not required to pay the Immigration Health Charge.

EU Settlement
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The Home Office states (<https://www.gov.uk/government/publications/eu-settlement-members-in-scheme-application-processing-times/eu-settlement-scheme-pilot-current-expected-processing-times-for-applications>) that it typically takes up to a month for an EU Settlement Scheme application to be processed, if no further information is required. However, it can take considerably longer due to well-publicised delays in the processing of applications under the Scheme.

If your application has been refused, you will have a **right of appeal to the First-tier Tribunal (Immigration & Asylum Chamber)** (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/first-tier-tribunal-immigration-appeal/>) or administrative review. If you are granted Pre-Settled Status, but think that you qualify for Settled Status, you can also challenge the decision by administrative review.

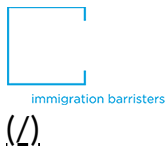
Our immigration barristers regularly assist EU, EEA and Swiss citizens and their family members to apply to the EU Settlement Scheme.

Whether you require expert advice on the requirements of the EU Settlement Scheme, an independent assessment of your prospects of qualifying for the EU Settlement Scheme or professional assistance with preparing an EU Settlement Scheme application or appeal, our immigration barristers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to EU, EEA and Swiss citizens and their family members as part of a professional and friendly service.

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WHAT CAN WE HELP YOU WITH?

To arrange an initial consultation meeting with one of our immigration barristers, contact our EEA Nationals and Family Members immigration team on 0203 617 9173 or complete our enquiry form.

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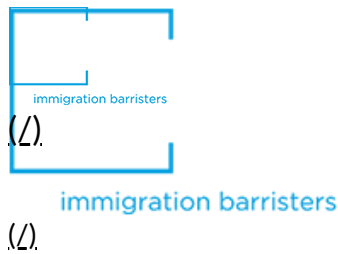
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